any original process, in any other district than that whereof he is an inhabitant, or in which he shall be found at the time of serving the writ." *McMicken* v. *Webb*.... *25

2. McMicken and Ficklin were in partnership, as merchants, in the state of Louisiana, and at the dissolution of the connection, Ficklin agreed to purchase the half of the stock belonging to McMicken; and after the partnership was dissolved, gave him, in payment for the same, a promissory note, payable, after its date, to the order of McMicken & Ficklin, which was executed by Ficklin, Jedediah Smith and Amos Webb, by which they promised, jointly and severally, to pay the amount of the note. Although the note was made payable to the order of McMicken and Ficklin, the latter was in no wise interested in it, as the payee thereof. McMicken was a citizen of Ohio, and the makers of the note were citizens of the state of Louisiana: *Held*, that the objection to the jurisdiction of the court, on the ground that the note was given to Ficklin & McMicken, and as Ficklin was a citizen of Louisiana, the suit is interdicted by the prohibition of the judiciary act, which declares, that the courts of the United States shall not have cognisance of a suit in favor of a *chose in action*, unless a suit could have been prosecuted in said court, for the same, if no assignment had been made, except in cases of foreign bills of exchange; cannot be sustained. Ficklin never had any interest, as payee, in the note; although the note had been given in the names of both persons, it was for the sole and individual benefit of McMickin, and there was no interest which Ficklin could assign..... *Id.*

3. A bill of exchange was drawn, in Alabama, by a citizen of that state, in favor of another citizen of Alabama, on a person at Mobile, who was also a citizen of that state; it was, before presentation, indorsed in blank by the payee, and became, *bonâ fide*, by delivery to him, the property of a citizen of North Carolina; and by indorsement subsequently made upon it, by the attorney of the indorsee, the blank indorsement was converted into a full indorsement, by writing the words, pay to Sterling H. Gee, the plaintiff, over the indorser's name. The bill was protested for non-acceptance, and a suit was instituted on it, before the day of payment, against the indorser, in the district court of the United States for the district of Alabama: *Held*, that the district court of Alabama had jurisdiction of the case. *Evans* v. *Gee*.....*80

4. The rule was established by this court in Young *v.* Bryan, 6 Wheat. 146, that the circuit court of the United States has jurisdiction of a suit brought by the indorsee of a promissory note, who was a citizen of one state, against the indorser, who was a citizen of a different state; whether a suit could be brought in that court by the indorsee against the maker, or not..... *Id.*

5. Evidence to show that the original parties to the bill of exchange were citizens of the same state, if offered to affect the jurisdiction of the court, is inadmissible, under the general issue; a plea to the jurisdiction should be put in..... *Id.*

6. The supreme court has no power, under the 25th section of the judiciary act of 1789, to revise the decree of a state court, when no question was raised or decided in the state court, upon the validity or construction of an act of congress, nor upon the authority exercised under it, but on a state law only. *McBride* v. *Hoey*..... .....*167

7. The local laws of a state of the United States can never confer jurisdiction on the courts of the United States; they can only furnish rules to ascertain the rights of the parties, and thus assist in the administration of the proper remedies, where the jurisdiction is vested by the laws of the United States. *The Steamboat Orleans*..... .....*175

JURY.

1. It is the exclusive province of the jury to decide what facts are proved by competent evidence; it is their province to judge of the weight of testimony, as tending, in a greater or less degree, to prove the facts relied upon. *Ewing* v. *Burnet*.....*41

KENTUCKY AND TENNESSEE.

1. Construction of the compact of 1820, between the states of Kentucky and Tennessee relative to the boundary between those states. *Poole* v. *Fleeger*..... .....*185

LANDS AND LAND TITLES.

See COMPACT: POSSESSION OF LAND: STATUTES OF LIMITATION.

LIEN.

1. By the maritime law, the master has no lien on the ship even for maritime wages. *The Steamboat Orleans*.....*175

LOCAL LAW.

1. The provisions of the local law or civil code of Louisiana, were applied to a case which was instituted in the district court of the

United States, under the chancery powers vested in that court, by the constitution of the United States, giving chancery jurisdiction to the courts of the United States. *Livingston* v. *Story*.....*351

2. The local laws of a state can never confer jurisdiction on the courts of the United States; they can only furnish rules to ascertain the rights of the parties, and thus assist in the administration of the proper remedies where the jurisdiction is vested by the laws of the United States. *The Steamboat Orleans*.....*175

MANDAMUS.

1. Motion for a rule on the district judge of the district court of the United States for the Missouri district, to show cause why a *mandamus* should not issue from the supreme court, commanding him to order an execution to issue on a judgment entered in that court in the case of the Postmaster-general of the United States *v.* Rector's administrator. The motion was founded on an attested copy of the record of the proceedings in the district court; by which it appeared, that the district judge, on the motion of the district-attorney of the United States, for an order for an execution on this judgment, "after mature deliberation thereon," overruled the motion. The rule to show cause was refused. *Postmaster-General* v. *Trigg* *173

2. The court have looked into the practice of this court, upon motions of this sort, and it does not appear to have been satisfactorily settled; for anything that appears, in this case, there may have been sufficient reason for the decision of the district court, overruling the motion for an execution; and there is nothing in the record, to create a *primâ facie* case of mistake, misconduct or omission of duty, on the part of the district court. In such a state of facts, the court are bound to presume that everything was rightly done by the court, until some evidence is offered to show the contrary; and they cannot, upon the evidence before the court, assume that there is any ground for its interposition..*Id.*

3. A rule to show cause, is a rule upon the judge to explain his conduct; and implies that a case had been made out, which makes it proper that this court should know the reasons for his decision. When the record does not show mistake, misconduct or omission of duty on the part of the court; unless such a *primâ facie* case to the contrary is made out, supported by affidavit, as would make it the duty of the court to interpose; such a rule ought not to be granted.....*Id.*

MASTER AND SLAVE.

1. The acts of congress which prohibit the slave-trade, and the importation of persons of color into the United States, do not apply to the case of a master, a citizen of the United States, who carries his slaves with him abroad, as his servants; and afterwards brings or sends them back to the United States, after such temporary absence. *The Ship Garonne*.....*73

PARTIES TO A WRITTEN INSTRUMENT.

1. The principle settled by this court, in the case of the Bank of the United States *v.* Dunn, 6 Pet. 51, goes to the exclusion of the evidence of a party to a negotiable instrument, upon the ground of the currency given to such instruments, by the name of the witness called to impeach their validity, and does not extend to a case in which that reasoning does not, apply. *United States* v. *Leffler*.....*86

PART-OWNERS OF VESSELS.

See ADMIRALTY, 3.

PASSENGER LAWS.

1. The passenger laws of the United States apply only to passengers whilst on their voyage and until they have landed; after the landing of passengers, the laws of the United States do not come in conflict with the laws of a state, which obliges security to be given against their becoming chargeable as paupers; and for their removal out of the state, in the event of their having become so chargeable. *New York* v. *Miln*.....*102

2. Persons are not the subject of commerce; and not being imported goods, they do not fall within the reasoning founded upon the construction of a power given to congress to regulate commerce, and the prohibition of the states from imposing a duty on foreign goods .....*Id.*

PENNSYLVANIA LAND TITLES.

1. Construction of the compact between the states of Pennsylvania and Virginia, of 1780, relative to the titles to lands situated in the territory, the right to which was by that compact settled between those states. *Marlatt* v. *Silk*.....*1

PLEDGE.

1 Under the law of Louisiana, there are two kinds of pledges, the pawn and the *anti-*

chresis; a thing is said to be pawned, when a movable is given as a security; the *antichresis* consists of immovables. *Livingston* v. *Story* *351

See ANTICHRESIS.

POSSESSION OF LAND.

1. An elder legal title to a lot of ground gives a right of possession, as well as the legal seisin and possession thereof, co-extensive with the right; which continues until there is an ouster by actual adverse possession, or the right of possession becomes in some other way barred. *Ewing* v. *Burnet*....*41
2. An entry by one, on the land of another, is or is not, an ouster of the legal possession, arising from the title, according to the intention with which it is done; if made under claim or color of right, it is an ouster; otherwise, it is a mere trespass; in legal language, the intention guides the entry, and fixes its character. *Id.*
3. It is well settled, that to constitute an adverse possession, there need not be a fence, a building, or other improvement made; it suffices for this purpose, that visible notorious acts were exercised over the premises in controversy, for twenty-one years after an entry under a claim and color of title....*Id.*
4. Where acts of ownership have been done upon land, which, from their nature, indicate a notorious claim of property in it, and are continued for twenty-one years, with the knowledge of an adverse claimant, without interruption, or an adverse entry by him, for twenty-one years; such acts are evidence of an ouster of the former owner, and of an actual adverse possession against him; if the jury think that the property was not susceptible of a more strict and definite possession than had been so taken and held. Neither actual occupation, nor cultivation, are necessary to constitute actual possession, when the property is so situated as not to admit of any permanent useful improvement; and the continued claim of the party has been evidenced by public acts of ownership, such as he would exercise over property which he claimed in his own right, and could not exercise over property which he did not claim.....*Id.*
5. An adverse possession for twenty-one years, under claim or color of title, merely void, is a bar to a recovery under an elder title by deed; although the adverse holder may have had notice of the deed.....*Id.*

POSTPONEMENT.

1. In a case depending between the states of Rhode Island and Massachusetts, the senior counsel appointed to argue the cause for the state of Rhode Island, by the legislature was prevented, by unexpected and severe illness, attending the court; the court, on the application of the attorney-general of the state, ordered a continuance for the term. *Rhode Island* v. *Massachusetts*..... *227

PRACTICE.

1. In the ordinary course of things, on the trial of a cause before a jury, if an objection is made and overruled, as to the admission of evidence, and the party does not take any exception, he is understood to waive it; the exception need not, indeed, then be put in form, or written out at large and signed; but it is sufficient, if it be taken, and the right reserved to put it in form, to be written out at large and signed, within the time prescribed by the practice or rules of the court. *Poole* v. *Fleeger*..... *185
2. In the state of Tennessee, the uniform practice has been, for tenants in common in ejectment, to declare on a joint demise; and to recover a part, or the whole, of the premises declared for, according to the evidence adduced.....*Id.*
3. After a case had been, at the request of the plaintiff, certified from the circuit court of Maine, on a division of opinion between the judges of the court, the plaintiff filed in the circuit court, a notice that he had discontinued the cause, and gave the defendant notice, that at the ensuing term of the supreme court, the cause would be then discontinued. On motion of the plaintiff, the court allowed the discontinuance. *Veazie* v. *Wadleigh*.....*55

See MANDAMUS: POSTPONEMENT.

PRESCRIPTION.

1. The doctrine of prescription, under the civil law, does not apply to an *antichresis*. *Livingston* v. *Story*.....*351

See ANTICHRESIS.

PROBATE OF WILL.

See WILL.

PUBLIC GRANTS.

1. Public grants are to be construed strictly; in the case of the United States *v.* Arredondo, 6 Pet. 736, the leading cases on this subject are collected together by the learned judge, who delivered the opinion of the court; and the principle recognised, that in grants by